

4.	<u>30-2024-01374534-CU-PO-NJC</u> K. vs. Mendoza	Before the Court is a Motion for Relief from Waiver of Objection (ROA 186); Motion to Compel Further Responses to Requests for Production (ROA 271); Motion to Compel Further Responses to Requests for Production (ROA 271); and Motion to Compel Further Responses to Requests for Production (ROA 271). On July 23, 2025, Plaintiff Gina K. (“Plaintiff”) filed a Motion to Compel Production against Defendant Kaiser Foundation Health Plan, Inc.; Defendant Kaiser Foundation Hospitals; and Defendant Southern California Permanente Medical Group (collectively “Defendants”). ROA 118. On March 11, 2026, Defendants filed a Motion for Relief from Waiver of Objections. ROA 186. On May 22, 2026, the Court ordered Plaintiff to file amended narrow motions to compel no later than June 10, 2026. ROA 262. On June 9, 2026, Plaintiff filed narrowed amended motions and an amended separate statement. <i>See</i> ROA 269, 271. Plaintiff requests that the Court enter an order compelling Defendants to provide full and complete further verified responses, including the responsive documents, without objections to the Request for Production. ROA 271. Additionally, Plaintiff seeks monetary sanctions be awarded in the amount of \$8,060.00. <i>Id.</i> I. Untimely Opposition The court has broad discretion to accept or reject late filed papers filed beyond the deadline without a prior court order finding good cause for the late submission. Cal. Rules of Court, Rule 3.1300(d); <i>see also Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i>, 2 Cal. App. 5th 252, 262–263 (2016); <i>Samaniego v. Empire Today LLC</i>, 205 Cal. App. 4th 1138, 1146, (2012). The Court notes that Plaintiff’s Opposition to Defendants’ Motion for Relief from Waiver of Objections was untimely. The Motion was set for hearing on July 23, 2026. ROA 262.
----	---	---

		Plaintiff's Opposition was due on July 10, 2026. Cal. Civ. Proc. Code, § 1005(b). Plaintiff did not file the Opposition until July 16, 2026. ROA 287. Accordingly, the Court declines to consider the untimely Opposition. II. Untimely Responses to Request for Production Under California Code of Civil Procedure Section 2031.300, if the responding party fails to serve a timely response to a demand, the responding party waives any objection to the demand, including one based on privilege or on the protection for work product. Cal. Civ. Proc. Code § 2031.300. On August 7, 2024, Plaintiff propounded Plaintiff's Request for Production, Set One, on Defendants. ROA 271. On June 30, 2025, Defendants untimely served responses to Plaintiff's Request for Production, Set One. At that time, objections were waived by operation of law. III. Motion for Relief From Waiver California Code of Civil Procedure Section 2031.300 provides that the Court may relieve a party from waiver on its determination that both of the following conditions are satisfied: "[t]he party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280"; and "[t]he party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." Cal. Civ. Proc. Code § 2031.300 (a)(1)-(2). A person who seeks relief under the theory of excusable neglect, must show that the neglect was attributable to an act or omission which might have been committed by a reasonably prudent person under the circumstances. <i>Transit Ads, Inc. v. Tanner Motor Livery, Ltd</i>, 270 Cal. App. 2d 275, 279 (1969) (citations omitted). Here, Defendants' counsel argues that, due to a "clerical mistake," they inadvertently failed to serve responses to the discovery requests. ROA 186. However, counsel provides
--	--	---

no explanation of the alleged “clerical mistake,” including how the mistake occurred, who was responsible for it, or why it should warrant relief. *Id.* On this record, the Court finds that Defendants have failed to establish that this is the type of mistake for which relief is available. Accordingly, Defendants’ Motion for Relief from Waiver of Objections is **DENIED**, and all objections remain waived by operation of law.

IV. Motion to Compel Further Responses to Request for Production

Responses to requests for production must take the form of either: (i) an agreement to comply; (ii) a representation of inability to comply; or (iii) objections. Cal. Civ. Proc. Code § 2031.210(a).

An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (1) that the production or inspection will be permitted in whole or in part; and (2) that the items demanded that are in the responding party’s custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Importantly, the items to which the responding party agrees to produce must be of the “demanded category” of items requested by the propounding party. *Id.*

Compliance requires that the responding party produce the documents specified in the demand *on the date specified*, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)-(b).

A statement that the responding party is unable to comply with the demand for production must: (1) affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and (2) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that “the particular item or category has never existed, has been

	destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the <i>name</i> and <i>address</i> of said party. <i>Id.</i> At the outset, the Court notes that the moving party's amended separate statement was less than helpful in the resolution of the discovery dispute. <i>See</i> ROA 269. Nevertheless, the Court finds as follows: a. RFP No. 5 Upon review, the Court finds that Defendants' response to RFP No. 5 is code compliant and no further response is warranted. <i>See</i> ROA 269. b. RFP No. 9 Upon review, the Court finds that Defendants' response is not code compliant and a further response is warranted. <i>See Id.</i> Defendants' response consisted entirely of objections, which have been waived by operation of law. Accordingly, the Court ORDERS Defendants to provide a further code compliant response and any and all responsive documents without objection no later than August 13, 2026, unless stipulated otherwise. c. RFP No. 13 Upon review of the separate statement and the Declaration of Blaine Yanabu, the Court finds that Defendants' response is code compliant and no further response is warranted. <i>See Id.</i> d. RFP No. 14 Upon review, the Court finds that Defendants' response is not code compliant and a further response is warranted. <i>See</i> ROA 269. Defendants' response failed to state the address of the party believed to have possession, custody, or control of the requested information. Accordingly, the Court
--	--

	ORDERS Defendants to provide a further code compliant response to include the name and <i>address</i> of the party believed to have possession, custody, or control, no later than August 13, 2026, unless stipulated otherwise. e. RFP Nos. 6, 7, 8, 10, 11, 12, and 15 Upon review, the Court finds that Defendants’ responses are not code compliant and further responses are warranted. <i>See Id.</i> Defendants’ responses each state that they “will produce in whole,” but fail to specify the date of production. Accordingly, the Court ORDERS Defendants to provide further code compliant responses no later than August 13, 2026. V. Mandatory Sanctions California Code of Civil Procedure Section 2031.310(h) provides that the court “shall impose a monetary sanction under Chapter 7 against [anyone] who unsuccessfully makes or opposes a motion to compel further responses to a demand . . . <i>unless</i> it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2031.310(h). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions, a party may show “substantial justification” for his or her position—<i>i.e.</i>, a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)); <i>see also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i>, 200 Cal. App. 4th at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit
--	---

	finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Additionally, California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993); <i>Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013); <i>see Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 829-832 (2023). Courts consistently hold that untimely compliance does not preclude the imposition of monetary sanctions. <i>See</i> Cal. Rules of Court Rule 3.1348 (“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.”); <i>see also Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 831 (2023) (“[u]ntimely compliance is not compliance.”). In light of Defendants’ counsel’s lack of substantial justification, sanctions are mandatory. VI. Sanctions Amount Three principles guide the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>See Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT</i>,
--	---

	<i>Inc.</i>, 56 Cal. App. 5th 771, 790-91 (2020) (compulsion, causation, and reasonableness). “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Accordingly, the Court finds that the sanctions requested by the moving party are unreasonable and exercises its discretion to reduce the sanctions amount to \$3,503. As such, the Court makes the following orders: The Court DENIES Defendants’ Motion for Relief from Waiver of Objections and all objections remain waived by operation of law. The Court GRANTS IN PART Plaintiff’s Motions to Compel Further Responses to Requests for Production. Defendants are ORDERED to provide a further code compliant response without objection to RFP No. 9 and produce any and all responsive documents no later than August 13, 2026, unless stipulated otherwise. Defendants are ORDERED to provide further code compliant responses to RFP Nos. 6, 7, 8, 10, 11, 12, 14, and 15, no later than August 13, 2026, unless stipulated otherwise. <i>See supra</i>.
--	---

		Lastly, the Court IMPOSES sanctions in the amount of \$3,503 against Defendants' counsel Kelly Trotter & Franzen due and payable to Kyle Scott Law within thirty (30) days of receiving notice. Plaintiff to give notice.
5.	<u>30-2025-01511675-CU-BC-NJC</u> Coastal Commercial Medical, LLC vs. PA Coastal Kids, LLC	Before the Court are two (2) Motions to Compel Deposition ("M-DEPO"), and Sanctions, brought by Plaintiff Coastal Commercial Medical, LLC ("Plaintiff") against Defendant PA Coastal MSO, LLC ("Defendant"). ROAs 27, 28. The underlying controversy is a breach of contract claim arising from a commercial lease of real property. ROA 10. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2025.280 and 2025.450, compelling Defendant to produce employee Chester Slonaker, M.D. ("Slonaker") for deposition and to provide testimony. ROA 27, p.2. Additionally, Plaintiff seeks monetary discovery sanctions upon Defendant and Defendant's counsel of record, Kilpatrick Townsend & Stockton LLP, jointly and severally, in the amount of \$12,751.80, for the costs borne by Plaintiff in bringing the M-DEPO for Slonaker. ROA 28, p. 8. Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Sections 2025.280 and 2025.450, compelling Defendant to produce employee Michael Manocchio ("Manocchio") for deposition and to provide testimony. ROA 28, p.2. Additionally, Plaintiff seeks monetary discovery sanctions upon Defendant and Defendant's counsel of record, Kilpatrick Townsend & Stockton LLP, jointly and severally, in the amount of \$7,624.30, for the costs borne by Plaintiff in bringing the M-DEPO for Manocchio. ROA 28, p. 8. Defendant requests that the Court deny Plaintiff's motions and issue a protective order precluding the depositions of